

FIRST ENDORSEMENT

Andre Applewhite, Chief Prosecutor, Civilian Complaint Review Board to Deputy Commissioner Tarek A. Rahman, Department Advocate's Office, April 14, 2025. Contents noted. Recommend approval of the negotiated settlement agreement in DADS No. 2022-25771 against Detective Moises Martinez, Tax Registry No. 950832. The case was conferenced on March 13, 2025, before Assistant Deputy Commissioner of Trials Jeff Adler, who approved the negotiated penalty of New York City Police Department Imposed Training for DADS No. 2022-25771, after accepting the finding(s) of substantiation of the allegations contained in the Charges and Specifications. Charges and specifications will be dismissed for disposition purposes.

Andre D. Applewhite

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Chief Prosecutor

New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

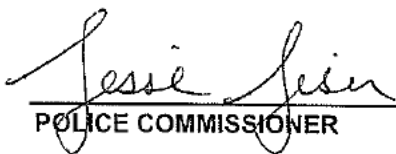
PD 468-142 (Rev. 8-89)-2

CASE NO.
C-031926BOOK & PAGE NO.
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PERSONNEL ORDER NO.

RANK/TITLE DT3	SURNAME, MARTINEZ	FIRST MOISES	M.I.	COMMAND 497
SHIELD NO. 6550	TAX REGISTRY NO. 950832	SOCIAL SECURITY NO.	DATE APPOINTED 07/06/2011	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Detective Moises MARTINEZ (then holding the rank of Police Officer), on or about December 13, 2020, at approximately 0030, while assigned to 040 PCT and on duty, in the vicinity of Front of the 40th Precinct stationhouse, Bronx County, was discourteous, in that he spoke discourteously to § 87(2)(b) without police necessity.	DISMISSED	TRAINING Respondent will comply with and complete re-training prescribed by the Department.
2. Detective Moises MARTINEZ (then holding the rank of Police Officer), on or about December 13, 2020, at approximately 0030, while assigned to 040 PCT and on duty, in the vicinity of Front of the 40th Precinct stationhouse, Bronx County, abused his authority as a member of the New York City Police Department, in that he threatened § 87(2)(b) with the use of force without police necessity.	DISMISSED	


FIRST DEPUTY COMMISSIONER9/4/25
DATE**POLICE COMMISSIONER'S APPROVAL**☒ Approved☐ Disapproved☐ Other Action (Describe)
POLICE COMMISSIONER11/4/25
DATE

**DISPOSITION OF CHARGES**

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3. Detective Moises MARTINEZ (then holding the rank of Police Officer), on or about December 13, 2020, at approximately 0030, while assigned to 040 PCT and on duty, in the vicinity of Front of the 40th Precinct stationhouse, Bronx County, abused his authority as a member of the New York City Police Department, in that he threatened § 87(2)(b) with the use of force without police necessity.	DISMISSED	



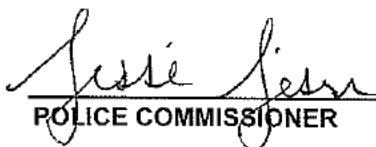
FIRST DEPUTY COMMISSIONER

9/4/25

DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)



POLICE COMMISSIONER

11/4/25

DATE

THIRD ENDORSEMENT

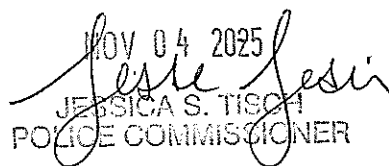
First Deputy Commissioner to Police Commissioner, September 4, 2025. Contents noted. I reviewed the negotiated plea in PODS Case No. C-031926 (DADS Case No. 2022-25771; CCRB Case No. 2021000028) against Detective Moises Martinez, Tax No. 950832, with the recommendation that the Charges and Specifications against Detective Martinez be dismissed and that he receive Training. Assistant Deputy Commissioner, Trials Jeff S. Adler reviewed this matter and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**



Tania I. Kinsella
FIRST DEPUTY COMMISSIONER

TIK/pk

APPROVED

NOV 04 2025

JESSICA S. TISCH
POLICE COMMISSIONER